

STATE OF NEW YORK

1372--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. DINOWITZ, BURDICK, HEVESI, TAPIA, LEVENBERG, SIMON, O'PHARROW -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to enacting the "public university emergency contraception education act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "public university emergency contraception education act".

3 § 2. Legislative findings and intent. The legislature finds that
4 access to emergency contraception is a basic measure that can prevent
5 college students from having an unwanted pregnancy. The federal Food and
6 Drug Administration has approved the use of emergency contraception as
7 safe and effective in the prevention of pregnancy. Emergency contrac-
8 tion has been found to have no effect on an established pregnancy.
9 Medical research strongly indicates that the sooner emergency contrac-
10 tion is administered, the better the chance of preventing an unwanted
11 pregnancy. Therefore, the legislature deems it essential that the
12 commissioner of the department of health establish a statewide emergency
13 contraception college education and awareness campaign in which each
14 college and university of the state university of New York and the city
15 university of New York provide information on emergency contraception to
16 its students and make it available to any student who seeks it whenever
17 practicable and in accordance with applicable law and professional stan-
18 dards of practice.

19 § 3. Subdivision 1 of section 207 of the public health law is amended
20 by adding a new paragraph (t) to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD02070-04-5

1 (t) The commissioner shall establish a statewide emergency contrac-
2 tion college education and awareness campaign to:

3 (i) promote public awareness in colleges and universities of the safe-
4 ty and efficacy of emergency contraception in preventing pregnancy as so
5 deemed by the federal Food and Drug Administration; and

6 (ii) inform and educate individuals through the dissemination of
7 informational materials and posters relating to the safety and efficacy
8 of emergency contraception to every college and university of the state
9 university of New York and the city university of New York. Such materi-
10 als shall be made available to be conspicuously displayed at appropriate
11 locations around each campus and distributed to students in a manner to
12 be determined by each college and university.

13 § 4. This act shall take effect on the one hundred twentieth day after
14 it shall have become a law. Effective immediately, the addition, amend-
15 ment and/or repeal of any rule or regulation necessary for the implemen-
16 tation of this act on its effective date are authorized to be made and
17 completed on or before such effective date.